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CASE #	CASE NAME	HEARING NAME
CVRI2401324	WARREN VS RUTLEDGE	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Plaintiffs and Cross-Defendants Donal Warren and First Pinnacle Capital Group, Inc.'s Motion for Attorney's Fees is granted in the amount of \$39,750 and expert fees in the amount of \$1,800.

If a party responding to Request for Admissions (RFA) is found to have unreasonably denied an RFA, the responding party may be ordered to pay the costs and fees incurred by the requesting party in proving that matter. On the requesting party's motion, the court is required to make this costs and expenses award unless the responding party prove a statutorily recognized excuse. (CCP §2033.420(a), (b).) If a party who denies an RFA lacks personal knowledge but had available sources of information and failed to make a reasonable investigation, the failure will justify a CCP §2033.420 award of costs and expenses. (*Rosales v. Thermex-Thermatron, Inc.* (1998) 67 Cal.App.4th 187, 198.)

A party seeking CCP §2033.420 costs and expenses may make a motion after proving the truth of the matter in dispute. (CCP §2033.420(a).) Here, the motion is properly brought after the court ruled on the merits of the case after trial. Plaintiff proved all issues and the court ruled in his favor.

An accounting is required setting forth the hourly fees and time spent to "prove" the specific matters denied, as opposed to time spent in preparation for trial generally or in proving other matters at trial of the case. (*Garcia v. Hyster Co.* (1994) 724, 737 (conclusory statements by counsel are insufficient).) Only expenses resulting from the responding party's failure to admit the RFA are awardable. Therefore, expenses and fees incurred before the RFA was denied are not awardable under CCP §2033.420. (*Garcia v. Hyster Co.* (1994) 28 Cal.App.4th 724, 736.)

The RFAs at issue were relevant to Kurtz's claims that ultimately was successful in proving. Kurtz's declaration includes copies of billing entries for time incurred in this matter. The entries range from April 16, 2026, to June 23, 2026 – well after the RFAs were propounded and answered. During this period, Kurtz was preparing for mediation, trial, and trial-related tasks (motions in limine, exhibit lists, etc.). Since the RFAs related to all issues at trial, all trial related to preparing for trial is recoverable.

The Opposition does not present any argument or evidence that warrants denying the motion. None of the exceptions in CCP §2033.420(b) are applicable. Defendants' only argument is that they believe they were also victims of fraud in this matter. They do not argue that they properly denied the RFAs or that they had a reasonable and good faith belief they would be successful in this litigation. Plaintiff has shown he is entitled to recover attorney fees and costs under CCP §2033.420 and Defendants have not offered any argument or evidence that warrants denying the motion.

The only remaining issue is the amount of the award. Plaintiff seeks an award for attorney fees totaling \$39,750 and expert fees in the amount of \$1,800. (Kurtz Decl. ¶¶5-6, Exhibits 4 and 5.) This is based on Attorney Kurtz's billing rate of \$500/hour, which is appropriate given counsel's more than forty (40) years of experience as an attorney. The billing time sheets provided indicate that counsel spent a reasonable amount of time preparing for mediation, trial, and trial-related matters. Counsel would not have had to spend that time had Defendants admitted the RFAs at issue as they were dispositive. The claimed expert fees are also appropriate and supported by documentation. (Kurtz Decl. Ex. 5.)